IN THE SUPREME COURT OF INDIA

ECONOMIC OFFENCES & BAIL STANDARDS JURISDICTION

(Full Bench (3 Judges))

CASE NUMBER: Criminal Appeal No. 1340 of 2019 **CNR: SCIN010013402019**

REPORTABLE CITATION: (2019) 9 SCC 24 DATE: December 04, 2019

CORAM: Hon'ble R. Banumathi, A.S. Bopanna, Hrishikesh Roy, JJ.

P. Chidambaram v. Directorate of Enforcement

P. Chidambaram ...PETITIONER(S)

VERSUS

Directorate of Enforcement ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Prevention of Money Laundering Act, 2002, Code of Criminal Procedure, 1973 | Sections: Section 45 PMLA

Held that economic offences cannot be treated as an absolute class where bail must be denied automatically; the basic bail test (flight risk, witness tampering) remains operative. Accused persons in financial or economic cases cannot be denied bail perpetually as a form of pre-trial punishment if they do not pose a flight risk or tampering danger.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

Even if the allegation is one of grave economic offence, it is not a rule that bail should be denied in every such case. The gravity of the offence is to be gathered from the nature of the allegation and the severity of punishment. In determining bail, the court must consider whether there is flight risk, risk of tampering with evidence, or influencing witnesses.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Regular Bail Granted in INX Media Case (Outcome: Allowed)

Precedential Authority: Good Law (Precedent on PMLA Bail)

LEXGUARD CRYPTOGRAPHIC REGISTERED SEAL • STATUTORY JUDICIAL ARCHIVE

`Section 65B IEA / Section 63 BSA • Immutable Repository Authority Record`